



Version 2026.09 · Effective 9 September 2026 · South Africa

The terms that govern every Talent Tree client engagement — specialist search, executive search, market mapping and selective team builds.

These Terms of Business (“Terms”) apply to every engagement between Talent Tree Consulting (“Talent Tree”, “we”, “us”) and the client organisation that briefs us (“the Client”).

Talent Tree is a South African niche-skills recruitment and executive search firm, established in 2013. We headhunt; we do not advertise roles. Instructing us, accepting a shortlist, interviewing a Candidate we have introduced, or signing a mandate constitutes acceptance of these Terms, unless a written mandate signed by both parties expressly varies them.

Where a signed mandate, fee schedule or statement of work conflicts with these Terms, the signed document prevails for that engagement only.

01 Application

These Terms apply to specialist search, executive search, market mapping, selective team builds and any related talent-advisory work Talent Tree performs for the Client.

They apply whether the brief is given verbally, by email, through the enquiry form on talenttree.co.za, or in a formal mandate, and whether or not a separate contract is signed.

The Client is responsible for ensuring that anyone in its organisation who briefs Talent Tree, receives Candidate information, or interviews a Candidate is authorised to bind the Client to these Terms.

02 Definitions

“Candidate” means any person Talent Tree identifies, approaches, represents or introduces to the Client in connection with a brief, including by name, CV, profile, meeting, call or written summary.

“Introduction” means the Client’s first receipt of a Candidate’s identity or sufficient information to identify that person, from Talent Tree or from anyone acting on Talent Tree’s behalf.

“Engagement” means the Client’s employment, secondment, contracting or other use of a Candidate, whether permanent, fixed-term, part-time or through a related company, in any role.

“Remuneration” means the Candidate’s total annual cost to company in the first twelve months of Engagement — including guaranteed salary, guaranteed bonus, travel allowance, employer retirement contributions and any other guaranteed cash benefit — or the equivalent annualised fee for a contractor.

“Mandate” means the written or oral brief the Client gives Talent Tree, including any later written confirmation of fee, replacement period or scope.

03 Services

Talent Tree provides specialist and executive search by direct headhunting through its own networks and proprietary databases. We do not place job advertisements as a method of filling a brief.

A typical mandate includes clarifying the brief, mapping the relevant market, approaching suitable professionals, presenting a shortlist with context, and supporting the Client through interview, offer, resignation and start.

Market mapping and related advisory work may be scoped as a standalone deliverable. Unless agreed otherwise in writing, mapping work is charged on the basis confirmed when the brief is accepted.

Talent Tree works as an extension of the Client's HR or hiring team. Approaches to the market are made with the discretion the Client would use itself. We do not broadcast a vacancy.

04 Introduction of candidates

An Introduction is valid for twelve months from the date Talent Tree first identifies the Candidate to the Client. If the Client Engages that Candidate in any capacity during that period, a fee is payable, whether or not the original brief is still open, and whether or not the Engagement is in the role originally described.

If the Client already knows a Candidate, it must tell Talent Tree in writing within five business days of the Introduction, with reasonable evidence of a live process in the previous three months. If it does not, the Introduction is treated as Talent Tree's.

Passing a Candidate's details to another company in the Client's group, to a shareholder, or to a third party, is an Introduction by the Client. If that party Engages the Candidate within twelve months, the Client remains liable for the fee.

Talent Tree does not warrant that a Candidate will accept an offer, obtain a work visa, or remain in employment. We present people we believe are relevant to the brief, on the information available at the time.

05 Fees

The fee for each mandate is the amount agreed in writing between Talent Tree and the Client before work starts. It is typically expressed as a percentage of Remuneration, or as a fixed professional fee for mapping or retained search.

Where no separate fee schedule is signed, the fee confirmed in Talent Tree's written acceptance of the brief applies. If work proceeds without a written fee and an Engagement follows, the fee is the amount Talent Tree last quoted for that brief.

Unless the mandate says otherwise, the fee becomes due on the Candidate's acceptance of the Client's offer — not on the start date.

If Remuneration is not known at invoice date, Talent Tree will invoice on the figure in the offer letter or, if none, on a reasonable estimate, and adjust when the actual Remuneration is confirmed.

Fees are exclusive of VAT, which is added where it applies. The Client is responsible for any withholding tax required by law; the amount Talent Tree receives must equal the agreed fee.

06 Invoicing and payment

Invoices are payable within fourteen days of the invoice date, unless a different period is agreed in writing on the mandate.

Retained or staged fees are invoiced as set out in the mandate. Those instalments are earned when invoiced and are not refundable if the Client later pauses or cancels the search, except where Talent Tree has failed to perform the work those instalments cover.

Late amounts attract interest at the prescribed rate under the Prescribed Rate of Interest Act 55 of 1975, from the due date to the date of payment, without prejudice to any other remedy.

The Client may not set off, withhold or delay payment because a Candidate has not yet started, has resigned, or is subject to an internal approval that was not disclosed when the offer was made.

07 Subsequent engagement

If, within twelve months of an Introduction, the Client Engages a Candidate in any role — including a different business unit, a related company, or a contractor arrangement — the original fee (or the fee that would have applied to that Remuneration) is payable.

This clause survives completion or cancellation of the original mandate.

08 Replacement

If a Candidate's employment ends during the replacement period agreed in writing for that mandate, Talent Tree will use reasonable efforts to introduce a replacement Candidate at no additional search fee, provided all of the following are true:

the original fee has been paid in full by the due date; the Client notifies Talent Tree in writing within five business days of the termination, with the reason; the termination is not the result of redundancy, restructuring, a material change to the role, discrimination, or the Client's failure to provide a workplace in which a reasonable professional could succeed; and the Client continues to cooperate with the replacement search.

Unless the mandate states a replacement period, none applies. No cash refund is payable unless the mandate expressly provides for one.

A replacement search does not restart a new replacement period unless the mandate says so. Contractor and mapping engagements do not carry a replacement obligation.

09 Client responsibilities

The Client is responsible for the final hiring decision. Talent Tree does not verify qualifications, credit, criminal records or right-to-work unless the mandate expressly includes that work.

The Client must give Talent Tree an accurate brief, including the role, reporting line, location, Remuneration range, and any constraint that would reasonably affect who we approach.

The Client must not use Candidate information for any purpose other than considering that person for the brief, and must not contact a Candidate's current employer without the Candidate's prior consent, which Talent Tree will seek when required.

Offers, employment contracts and onboarding remain the Client's documents and the Client's legal responsibility.

10 Confidentiality

Each party must keep the other party's confidential information confidential and use it only to perform the mandate. That includes Candidate identities, compensation, the existence of a search, and the Client's business information disclosed for the brief.

Talent Tree may describe the Client in the market by sector and role, not by name, unless the Client authorises a named approach.

These obligations survive for three years after the mandate ends, and indefinitely for personal information of Candidates.

11 Protection of personal information

Both parties must comply with the Protection of Personal Information Act 4 of 2013 (“POPIA”) and any other privacy law that applies to the mandate.

Talent Tree processes Candidate and Client contact information in order to perform search services, to keep a professional talent database, and to communicate about mandates. The Client receives Candidate information as a responsible party for its own hiring process and must not retain it longer than it needs, nor share it outside that process.

If the Client transfers Candidate information outside the Republic of South Africa, it must ensure an adequate level of protection as POPIA requires.

Questions about Talent Tree’s handling of personal information may be sent to hello@talenttree.co.za.

12 Limitation of liability

Talent Tree is not the Candidate’s employer and is not liable for a Candidate’s acts, omissions, performance or conduct during or after Engagement.

To the fullest extent permitted by law, Talent Tree’s total liability to the Client arising out of a mandate is limited to the fees actually paid to Talent Tree for that mandate. We are not liable for indirect, consequential, or loss-of-profit damages.

Nothing in these Terms limits liability for fraud, gross negligence, or any liability that cannot lawfully be limited.

The Client indemnifies Talent Tree against claims arising from the Client’s misuse of Candidate information, a hiring decision, or a breach of these Terms.

13 Non-solicitation of Talent Tree

During a mandate and for twelve months after it ends, the Client must not solicit, employ or contract any Talent Tree consultant or employee with whom it had material contact on that mandate, without Talent Tree’s prior written consent.

If it does, it will pay Talent Tree a fee equal to six months of that person’s then-current total annual cost to company, as a genuine pre-estimate of the cost of replacement — not as a penalty.

14 Termination

Either party may end a live search by written notice. Fees already earned remain payable. Introductions made before termination remain subject to these Terms, including the twelve-month Engagement period.

Talent Tree may suspend work if an invoice is overdue, after giving the Client written notice and a reasonable opportunity to pay.

15 General

These Terms, together with any signed mandate for a specific brief, are the entire agreement for that work. They replace prior discussions about the same brief.

A variation is effective only if it is in writing and issued or accepted by Talent Tree. A failure to enforce a right is not a waiver of it.

If a provision is unenforceable, it is severed and the rest of these Terms continue.

The Client may not assign a mandate without Talent Tree's written consent. Talent Tree may use specialist contractors under its supervision to perform search work; it remains responsible to the Client for that work.

Notices may be given by email to the addresses used on the mandate, and to hello@talenttree.co.za for Talent Tree.

16 Governing law

These Terms are governed by the law of the Republic of South Africa. The courts of South Africa have exclusive jurisdiction, without prejudice to Talent Tree's right to recover an unpaid invoice wherever the Client is found.

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